Brazoria County District Court

Cause No. 2024-CV-0012

Paul Long, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Paul Long

Date:	November 23, 2024
Location:	Offices of Gardner & Morris Law Group
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Sergio Acosta, Gardner & Morris Law Group

Q: Please state your full name for the record.

A: I'd rather not give my full name on the record for this exercise, so you can refer to me as the plaintiff.

Q: Understood. Where were you on the day of the collision?

A: I was in a parking lot in Sugar Land, Texas, at a shopping center. I had just finished loading groceries into the trunk of my sedan.

Q: What were you doing immediately before the impact?

A: I was walking back toward the driver's side door. I had my keys out and I was looking down at them, which I now wish I hadn't been.

Q: Describe the vehicle that struck you.

A: It was a pickup truck backing out of a space two rows over. I saw its back-up lights come on, but I assumed it would stop before reaching the lane I was in. It did not stop in time.

Q: Did the truck make contact with your vehicle or with you?

A: The rear corner of the truck clipped the side of my car, and the door frame pinned my left leg between the two vehicles for a moment. I went down onto the asphalt.

Q: Did you feel pain rgiht away?

A: Yes, my knee was throbbing almost immediately. I remember thinking it was just a bad bruise, but by that evening it had swollen badly and I could barely bend it.

Q: Did you seek medical care?

A: I did. A friend drove me to an urgent care clinic that same evening. They took X-rays and told me to follow up with an orthopedic provider.

Q: Who has treated your knee snice then?

A: I've seen an orthopedic doctor and a physical therapist. The doctor ordered an MRI, and I've been doing physical therapy sessions about twice a week.

Q: How has the injury affected your daily activities?

A: Stairs are the hardest part. I avoid them when I can, and I have to take them one step at a time while holding the railing. I've had to stop gonig to my weekly exercise class, and I can't stand for long periods while cooking or doing dishes.

Q: Have you had any problems with work?

A: I work a desk job, so I'm mostly seated, but I've had to get up and move around often because sitting with the knee bent for long stretches causes stiffness. I've also missed some time for appointments.

Q: Have you had any prior injuries to that same knee?

A: Not that I recall being treated for. I played sports in school, so I've had the usual sprains over the years, but nothing that required a doctor's visit as far as I remember.

Q: Thank you. Is there anything you would like to add to your answers?

A: Only that I want to get back to normal. I'm hopeful the therapy will keep improving things.